

APEX CAPITAL LLC ARTICLES OF ORGANIZATION

Document type: Articles Of Organization

Test fixture — A — Scenario A — Nested LLC + Revocable Trust

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CERTIFICATE OF FORMATION

APEX CAPITAL LLC

State of Delaware

This Certificate of Formation is filed in accordance with Section 18-201 of the Delaware Limited Liability Company Act.

FIRST: The name of the limited liability company is Apex Capital LLC.

SECOND: The address of its registered office in the State of Delaware is 1209 Orange Street, City of Wilmington, County of New Castle, Delaware 19801.

THIRD: The name and address of its registered agent is The Corporation Trust Company, 1209 Orange Street, Wilmington, Delaware 19801.

Date of Formation: February 14, 2019

Signed: James R. Smith, Authorized Person

— TEST FIXTURE — SYNTHETIC DOCUMENT — NOT A LEGAL INSTRUMENT —

MEMBERSHIP AND OWNERSHIP

The Company is a single-member limited liability company. The sole member is Apex Holdings LLC, a limited liability company organized and existing under the laws of the State of Wyoming, with its principal office at 123 Main Street, Suite 400, Cheyenne, Wyoming 82001.

Apex Holdings LLC holds one hundred percent (100%) of the membership interests in Apex Capital LLC as of the date of this filing.

No other persons or entities hold any membership interest in the Company.

— TEST FIXTURE — SYNTHETIC DOCUMENT — NOT A LEGAL INSTRUMENT —

MANAGEMENT AND OPERATIONS

The Company shall be managed by its member. The managing member, Apex Holdings LLC, acting through its designated representative, shall have full authority to conduct all business of Apex Capital LLC, including but not limited to entering into contracts, acquiring and disposing of assets, and operating bank accounts.

Principal business activities: Real estate investment and asset management.

Fiscal year end: December 31.

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